

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**EMERGENCY MOTION TO VACATE COUNT 11 (DOMAINS /
PASSWORDS / DATA) FOR FACIAL INVALIDITY AND IMPOSSIBILITY;
AND FOR PROTECTIVE ORDER AGAINST CONTEMPT**

Defendant, pro se, moves on an emergency basis to vacate Count 11 of the Final Judgment and for a protective order. Count 11 commands Defendant to “release and turn over all domain names, passwords, and electronic data and information ... including but not limited to [a list that includes “www...” and “http://...” strings] within ten (10) days.” As written, Count 11 is facially invalid under Fla. R. Civ. P. 1.610(c), unsupported by competent proof of Plaintiffs’ ownership or Defendant’s present control/ability, and impossible to perform. It also threatens irreparable harm (email interception/impersonation) if enforced. Decision is requested on the papers. Count 11 further sweeps in pipepredictor.com, which predates DeepGulf and was never assigned, and paradoxically demands ‘turnover’

of domains Plaintiffs have not proved they own or that Defendant presently controls.

Relief: (1) Vacate Count 11 in full; and (2) enter a protective order barring any contempt, sanction, or third-party directive predicated on Count 11 and enjoining impersonation/interception, as set out below.

Grounds

1) Rule 1.610(c) — facial invalidity (lack of specificity; not self-contained)

A mandatory order must “describe in reasonable detail the act or acts required” and be self-contained. Count 11 uses undefined, open-ended categories (“all ... passwords, and electronic data and information,” “including but not limited to”), identifies no specific accounts/systems/locations/dates/formats, and is not limited to items in Defendant’s possession, custody, or control. It cannot support contempt.

2) No competent proof of ownership or control

The judgment cites no admitted registrar/registrant records, chain of title, or assignments proving Plaintiffs own any demanded domain, nor any finding that Defendant presently controls or can transfer them. Likewise, the order

demands “passwords” and “data” without any ownership, custody, or scope findings.

3) Mislabeled non-assets; impossibility

Count 11 lists non-registrable strings (“www...” and “http://...”) as if they were domain names. A party cannot “turn over” what is not an asset and/or not in his control. The order is impossible as framed.

4) Overbreadth and confidentiality (blanket “passwords” / “data”)

A blanket command to disclose unspecified “passwords” and “electronic data and information” is overbroad on its face, risks compelled disclosure of third-party/confidential/privileged material, and is untethered to any identified Plaintiff-owned property.

5) Non-party/foreign actors; no present-ability finding

Transfers or access often require registrars/hosts (non-parties). The Court cannot coerce performance that hinges on non-party action without a present-ability finding. Civil contempt requires a clear, unequivocal order and present ability to comply; Count 11 satisfies neither.

6) Irreparable harm if enforced (email interception / impersonation)

Defendant has used addresses at certain domains for decades. Forced control or credentials would enable interception of legal communications and impersonation—harms not compensable by money and destructive of case integrity.

7) PipePredictor.com predates DeepGulf; no assignment.

The domain **pipepredictor.com** relates to Defendant's independent mathematical work developed before 2004 and was never assigned to Plaintiffs. Plaintiffs offered no chain of title or assignment proving any ownership interest. Mandatory transfer of a pre-relationship asset is improper and unsupported.

8) Ownership/control inconsistency.

An order to “release and turn over” presupposes that Defendant—not Plaintiffs—holds registrant/registrar control. If Plaintiffs owned any domain, they would already control it and would not need turnover from Defendant. The absence of registrar registrant-of-record proof or a present-ability finding confirms Count 11 lacks a lawful basis and is impossible as framed.

9) No necessity; publicly available substitutes; prolonged bypass of open-market acquisition; pretext and bad faith.

If Plaintiffs had any legitimate operational need for a domain, they could have acquired a substitute on the open market years ago—and, for years, they also bypassed the opportunity to acquire the very domains they now demand when those domains were and still are publicly available and never controlled by Defendant. That prolonged non-action followed by a mandatory-transfer demand from a non-owner demonstrates lack of necessity, failure to mitigate, and pretext, and evidences bad faith. Equity will not issue punitive mandatory relief where an adequate, ignored alternative existed and where irreparable harm is negated by Plaintiffs' own delay.

Plaintiffs' long, unexplained delay in pursuing readily available market alternatives defeats any claim of urgency and independently supports denial under laches/unclean-hands principles.

Plaintiffs' non-pursuit of obvious alternative "Toke"-branded domains further confirms the absence of any bona fide need for the specific domains they target here.

Requested Relief

A. Vacatur. VACATE Count 11 in its entirety.

B. Protective Order. Pending further order, no contempt, sanction, writ, registrar/host directive, or enforcement may issue predicated on Count 11.

C. Deny any mandatory transfer on equitable grounds (laches, failure to mitigate, and bad faith), in addition to the Rule 1.610(c) and ownership/control defects.

D. Alternative (only if the Court declines immediate vacatur). No enforcement or contempt shall issue absent a new, specific order compliant with Rule 1.610(c) and an express finding of present ability to comply, with a reasonable cure period.

Verification (Fla. Stat. § 92.525)

I declare under penalty of perjury that: (1) from the face of Count 11 I cannot determine the specific assets, credentials, or data demanded; (2) Plaintiffs have not filed competent proof that they own the demanded items or that I presently control them; (3) I do not concede ownership or control of some items demanded; (4) I cannot comply with an indefinite and impossible order as written; and (5) forced control/credentials would risk

interception of my legal communications and impersonation. To my knowledge, Plaintiffs did not acquire available substitute domains—or the very domains later referenced in the Judgment—during the years they were publicly available, and still are, despite my not controlling them. The domain pipepredictor.com predates DeepGulf, Inc. and was never assigned to Plaintiffs. I am aware of no registrar record filed in this case identifying Plaintiffs as registrant of record for any demanded domain.

Date: September 8th , 2025

Marc M. Moszkowski, Defendant (pro se)



Respectfully submitted this 8th day of September, 2025

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 8th day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Marzowski